

Paschimanchal Vidyut Vitran Nigam Ltd. v. Mohd. Kasim

High Court of Judicature at Allahabad · Single Judge · 20 August 2018 · Criminal Revision No. 3907 of 2006 · **Revision dismissed; closure of the s.135 complaint affirmed.**

HEADNOTE

The High Court dismissed the distribution licensee's criminal revision against an order closing a complaint under section 135 of the Electricity Act, 2003 as not maintainable, finding no error in the Sessions Court's conclusion that the prosecution could not proceed under the 2003 Act and the Electricity Supply Code, 2005 and ought to have been initiated under the Electricity Reforms Act, 1999 and the Electricity Code, 2002.

FACTUAL SUMMARY

Paschimanchal Vidyut Vitran Nigam Ltd. preferred a criminal revision against an order dated 30 March 2006 of the Additional District and Sessions Judge, Moradabad, which allowed the accused Mohd. Kasim's maintainability application and closed complaint case no. 47 of 2005 under section 135 of the Electricity Act, 2003. The Sessions Court had held that the case could not proceed under the 2003 Act and Supply Code, 2005, and should have been initiated under the Electricity Reforms Act, 1999 and Electricity Code, 2002. None appeared for the revisionist.

REUSABLE CONSTRUCTIONS

1. A section 135 Electricity Act, 2003 complaint cannot proceed under the 2003 Act and the Electricity Supply Code, 2005 where the prosecution ought to have been initiated under the Electricity Reforms Act, 1999 and the Electricity Code, 2002. ¶ 1
2. The High Court will not interfere in revision with a Sessions Court order closing a section 135 complaint on maintainability where the order discloses no illegality, infirmity or jurisdictional error. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 complaint — maintainability; 2003 Act versus 1999 Reforms Act

HOLDING

The High Court declined to interfere with the Sessions Court's closure of a section 135 Electricity Act, 2003 complaint on maintainability. It held that the finding that proceedings under the 2003 Act and the Electricity Supply Code, 2005 could not continue, and that the prosecution should have been launched under the Electricity Reforms Act, 1999 and the Electricity Code, 2002, disclosed no illegality, infirmity or jurisdictional error; the licensee's revision was dismissed as lacking merit. ¶ 1